

[doc. web n. 10134791]
Provision of April 29, 2025
Register of provisions
No. 278 of April 29, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by

Prof. Pasquale Stanzione, President, Prof. Ginevra Cerrina Feroni, Vice President, Dr. Agostino Ghiglia and Attorney Guido Scorza, Members, and Dr. Claudio Filippi, Acting Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data (Legislative Decree No. 196 of June 30, 2003), as amended by Legislative Decree No. 101 of August 10, 2018, containing provisions for the adaptation of the national legal system to the aforementioned Regulation (hereinafter "Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING by Dr. Agostino Ghiglia;

PREMISE

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With the complaint received by the Authority on January 15, 2024, Mr. XX complained about receiving unwanted phone calls from MA Immobiliare S.r.l.s. (hereinafter "MA Immobiliare" and "Company") which, in response to the request made by the interested party on October 24, 2023, stated that it had obtained the contact data from Realmaps S.r.l. (hereinafter also "Realmaps" and "supplier") for which an email address was provided to obtain information on the processing of personal data, including "the tracking" of any consent given for commercial purposes. The company Realmaps was the subject of a separate investigation conducted in April 2024, which allowed the Authority to ascertain various critical issues regarding the processing of personal data intended for real estate agencies for marketing purposes (provision No. 11 of January 16, 2025, available at www.gdpd.it [doc. web n. 10110241]).

Considering, from what emerged in the documents, that the Company is included among the real estate agencies to which Realmaps would have provided the data for promotional purposes, on May 21, 2024, the Office made a request for information (ref. prot. No. 61527/24), pursuant to Article 157 of the Code, primarily aimed at clarifying the relationships with the aforementioned supplier and understanding the compliance measures regarding the protection of personal data that MA Immobiliare has implemented concerning the acquired lists, with particular reference to:

- the verification of an original informed consent that authorized the use for commercial purposes;
- the information provided during the phone calls as well as the call script used;
- the verification in the Public Register of Oppositions of the contacted numbers;
- the management of opposition requests made by the interested parties.

In a communication dated June 12, 2024, the Company responded to the aforementioned request from the Office, attaching the contractual documentation signed with the supplier and stating that it was not "aware of how the company Realmaps S.r.l. operates and how it obtains the relevant consents"; it also claimed to have contacted "about a hundred people" among those indicated in the lists acquired from the aforementioned supplier. Regarding compliance with information obligations and the management of opposition requests made by the interested parties, the Company stated that it was "not in a position to provide a certain response" and did not consult the Public Register of Oppositions.

2. THE CONTESTATION OF VIOLATIONS

By note dated July 2, 2024 (prot. No. 0081217/24), the Company was informed of the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code, for the adoption of any measures under Article 58, paragraph 2, of the Regulation, recognizing MA Immobiliare's responsibility for the alleged violation of the following provisions of the Regulation:

- Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, 13, 14 of the Regulation and Article 130, paragraphs 3 and 3 bis, of the Code for failing to verify or document the lawfulness of the data acquired from the supplier (information and consent) and for not having verified the contacted numbers in the Public Register of Oppositions;
- Articles 12 and 15 of the Regulation as the response to requests from the interested parties regarding the processing of their personal data is contingent upon the necessary consultation with Realmaps, which holds such information, resulting in a potential delay in addressing the aforementioned requests and a lack of complete satisfaction on the part of the requester;
- Articles 5, paragraph 2, 24, and 25 of the Regulation for failing to demonstrate the compliance measures implemented regarding...

****of personal data protection.****

****3. LEGAL ASSESSMENTS OF THE AUTHORITY****

The Company has not submitted any defensive memoranda, nor has it requested to be heard by the Authority but has limited itself to sending, on July 18, 2024, a copy of the financial statements for the year 2023.

Based on the factual profiles highlighted above and the statements made by MA Immobiliare in response, for which the declarant is liable under Article 168 of the Code, it is deemed appropriate to confirm the violations identified in the notice of contestation.

MA Immobiliare is to be considered the data controller, pursuant to Article 4 of the Regulation, having effectively determined the purpose for which the processing was carried out (promotion of its services) and the telephone channel used for this purpose. Therefore, the same Company is directly responsible for both the obligations imposed by the regulations on personal data protection and the liability for the identified violations.

From the responses, albeit brief, that the Company provided to the Authority in the communication of June 12, 2024, there is a total absence of checks on the lists acquired from Realmaps, to which, as far as can be understood, all requests for the exercise of rights made by data subjects who wish to obtain information about the processing of their personal data are directed. Indeed, already in the pre-investigation phase, there is evidence of such operational mode since the data subject was immediately invited to contact Realmaps to obtain proof of the alleged consent given for communication to third parties for commercial purposes (see email of October 26, 2023). This re-direction, as reconstructed by the Company, would shift the responsibility exclusively to Realmaps and, above all, would relieve MA Immobiliare of any informational and control obligations regarding the processing carried out in its interest, completely abdicating its role as data controller.

That said, it does not appear that MA Immobiliare, as the data controller, has produced documentation proving the existence of the lawfulness requirements for the data acquired from Realmaps. In particular, the Company has not verified, and therefore proven, the provision of information to the data subjects by the original data controller who would have acquired the data; similarly, it has not been proven whether the alleged consent to communication to third parties (including MA Immobiliare) for marketing purposes was granted by the data subjects, nor has it been verified whether such authorization complied with the requirements of freedom and specificity (as per Article 4, point 11, of the Regulation), with inevitable repercussions on the legitimacy of the Company's promotional activities.

It should also be noted that the Company did not produce, in its response, the call script used for promotional contacts nor, from the documentation on file, does it appear to have provided the data subjects, during the unsolicited calls, with the necessary information, pursuant to Article 13 of the Regulation, to inform them of the most relevant aspects of the processing of personal data (nature, origin of the data, legal basis) and of the rights under Articles 15 – 22 of the same Regulation. Partial information (exclusively on the origin of the data) was provided to the data subject only following a

formal request, demonstrating that the telephone contact occurred in violation of the principles of lawfulness and transparency.

Additionally, MA Immobiliare has stated that it does not check the Public Register of Oppositions (so-called RPO) for the registration of the telephone numbers targeted by the promotional contacts. In this regard, it should be noted that checking the aforementioned Register must be considered a precondition for properly conducting telemarketing activities, and the failure to consult it can only result in the impossibility of initiating any promotional campaign for which the use of the telephone is foreseen.

In conclusion, the described processing has resulted in promotional calls being made without the informed consent of the data subjects, since the Company has not produced evidential responses to document its acquisition, and without having verified the registration in the RPO of the contacted numbers. Therefore, it must be considered that the violation of Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, 13, 14 of the Regulation and Article 130, paragraphs 3 and 3 bis, of the Code is integrated, not only in relation to the case of the complaint but in the overall context of the processing carried out by MA Immobiliare concerning the data acquired from Realmaps.

From what is stated in point 1 of this provision, it emerges that the response to the data subject regarding the processing of their personal data inevitably passes through the requests that the latter is required to address to Realmaps. This re-direction mode results in a potential delay in the fulfillment of the data subject's requests and conflicts with the obligation of the data controller to provide a timely response "without unjustified delay," integrating the violation of Articles 12 and 15 of the Regulation. The above-described processing reflects a picture of inadequate control and non-compliance with the regulations on personal data protection.

****The company has not provided elements capable of proving the lawfulness of the processing, with particular regard to the obligations of information and consent. In the absence of adequate controls over the entire processing chain (from collection to the execution of the promotional campaign), the marketing activity is in violation of Articles 5, paragraph 2, and 24 of the Regulation, which frame the responsibilities of the data controller in a perspective of necessary enhancement of the principle of accountability aimed at proving compliance with obligations regarding the protection of personal data, also taking into account the principle of privacy by design (Article 25 of the Regulation).****

****It should be noted that even under the previous state legislation, but even more so today with the introduction of the aforementioned principles in the context of the unified regulation, the provision of a contractual indemnity clause cannot exempt the data controller from carrying out the necessary activities to demonstrate that the processing has been carried out in compliance with the principles of lawfulness, transparency, and fairness from which the provisions regarding legal basis and information derive.****

****4. CONCLUSIONS****

****In light of the arguments set forth in point 3 of this provision, the contested violations are deemed confirmed, and it is necessary to:****

- ****pursuant to Article 58, paragraph 2, letter f) of the Regulation, prohibit any further processing for promotional and commercial purposes carried out through lists acquired from Realmaps for which the Company does not have free, specific, and informed consent from the data subjects (Articles 6 and 7 of the Regulation, as well as Article 130 of the Code);****

- ****pursuant to Article 58, paragraph 2, letter d) of the Regulation, order the immediate deletion of said data, except for those that must be retained for compliance with a legal obligation or for the defense of a right in judicial proceedings, as well as for any other purpose that does not require informed, free, specific, documented, and unequivocal consent from the data subject;****

- ****pursuant to Article 58, paragraph 2, letter d) of the Regulation, order the Company, if it intends to direct promotional activities in the future towards telephone numbers provided by third parties, to adopt suitable procedures aimed at constantly verifying, including through adequate random checks, that personal data are processed in full compliance with the relevant provisions (prior acquisition of free, specific, unequivocal, documented, and informed consent from the data subjects for sending commercial communications) (Articles 6, 7, and 14 of the Regulation);****

- **pursuant to Article 58, paragraph 2, letter d) of the Regulation, order the immediate deletion of said data, except for those that must be retained for compliance with a legal obligation or for the defense of a right in judicial proceedings, as well as for any other purpose that does not require informed, free, specific, documented, and unequivocal consent from the data subject;**
- **pursuant to Article 58, paragraph 2, letter d) of the Regulation, order, for the purposes of the information obligation under Article 13 of the Regulation, to provide the data subjects with all the information provided therein;**
- **pursuant to Article 58, paragraph 2, letter d) of the Regulation, order MA Immobiliare to adopt appropriate technical and organizational measures to facilitate the exercise of the rights provided for by the data protection legislation and to satisfy, without unjustified delay, the related requests, including the right to object which may be raised "at any time" by the data subject.**

Finally, with regard to the processing already carried out and considering the violations established above, it is believed that the conditions exist for the application of an administrative monetary sanction pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation.

****5. ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE MONETARY SANCTION****

Based on the above, various provisions of the Regulation and the Code related to connected processing carried out by MA Immobiliare are found to be violated, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same processing or to connected processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation, resulting in the application of only the sanction provided for by Article 83, paragraph 5, of the Regulation.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, sets the maximum penalty at the sum of 20 million euros or, for enterprises, at 4% of the annual worldwide turnover of the previous financial year if higher, specifying the methods for quantifying the aforementioned sanction which must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1, of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated at the time of quantifying the related amount. The circumstances to be taken into consideration, in the specific case, must be considered, in terms of aggravating factors:

1. the severity of the violations detected, with particular reference to the absence of sample checks of the contact numbers acquired from the supplier, the inadequate management of requests to exercise the rights of the data subjects, as well as the lack of information during promotional phone calls (art. 83, par. 2, lett. a of the Regulation);
2. the negligent nature of the conduct, given that the rules for the protection of personal data were ignored by the data controller until the intervention of the Authority (art. 83, par. 2, lett. b of the Regulation);
3. the inconsistency of the Company's conduct compared to the significant regulatory activity of the Authority in the field of marketing, with particular reference to compliance with information and consent obligations (art. 83, par. 2, lett. k of the Regulation);
4. the lack of cooperation with the supervisory Authority since the Company, in response to the request for information from the Office, provided brief standard responses that demonstrated a total disregard for the duties of the Authority and, more generally, for the regulations on the protection of personal data and the related responsibilities assigned to the data controller (art. 83, par. 2, lett. f of the Regulation).

As mitigating factors, it is considered possible to take into account:

1. the absence of previous proceedings initiated against the Company (art. 83, par. 2, lett. e of the Regulation);
2. the nature of the data processed, consisting of common personal and contact data (art. 83, par. 2, lett. g of the Regulation);

3. the overall assessment of the economic capacity of MA Immobiliare, with particular reference to the latest financial statements for the tax period 2023 (art. 83, par. 2, lett. k of the Regulation).

In an overall perspective of necessary balancing between the rights of the data subjects and the freedom of enterprise, it is necessary to prudently evaluate the aforementioned criteria, also in order to limit the economic impact of the sanction. Therefore, it is believed that - based on the complex of the elements mentioned above - an administrative sanction of a payment of 40,000.00 euros (forty thousand/00) should be applied to MA Immobiliare, equal to 0.2% of the maximum administrative fine of 20 million euros.

In the case at hand, it is also considered that the accessory sanction of publication on the Authority's website of this provision, as provided for by art. 166, paragraph 7, of the Code and art. 16 of the Regulation of the Authority no. 1/2019, should be applied. In implementation of the principles set out in art. 83 of the Regulation, the imposition of this accessory sanction appears proportionate in relation to the severity and particular disvalue of the conduct subject to censure, with particular reference to the absence of adequate controls on the lists acquired from third parties and on the related obligations of information and consent of the data subjects for the processing of data for promotional purposes; furthermore, the brief and evasive responses provided to the Authority reveal a total disregard for the duties of cooperation identified by art. 31 of the Regulation, resulting in a significant disvalue assessment of the conduct itself.

It is noted that, pursuant to art. 170 of the Code, anyone who, being obliged, does not comply with this prohibition order on processing is punished with imprisonment from three months to two years and that, in the event of non-compliance with the same order, the sanction referred to in art. 83, par. 5, lett. e) of the Regulation is also applied in an administrative context.

Finally, the conditions referred to in art. 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority, for the annotation of the violations detected here in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation, are present.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY pursuant to art. 57, par. 1, lett. f), of the Regulation, declares the processing described in the terms of the motivation carried out by MA Immobiliare S.r.l.s., based in Via Goffredo Mameli 10, 37126 Verona (VR), VAT number 04949990230, unlawful; consequently:

a) pursuant to art. 58, par. 2, lett. f) of the Regulation, prohibits any further processing for promotional and commercial purposes carried out through the lists acquired from Realmaps for which the Company does not have free, specific, and informed consent from the data subjects (arts. 6 and 7 of the Regulation, as well as 130 of the Code);

b) pursuant to art. 58, par. 2, lett. d), of the Regulation, orders to proceed without delay.

****To the deletion of said data, without prejudice to those that must be retained for the fulfillment of a legal obligation or for the defense of a right in judicial proceedings, as well as for any other purpose that does not require informed, free, specific, documented, and unequivocal consent from the data subject;****

c) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders the Company, should it intend to direct promotional activities in the future towards telephone numbers provided by third parties, to adopt suitable procedures aimed at constantly verifying, including through appropriate sample checks, that personal data is processed in full compliance with the relevant provisions (prior acquisition of free, specific, unequivocal, documented, as well as informed, consent from the data subjects for the sending of commercial communications) (Articles 6, 7, and 14 of the Regulation);

d) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders, for the purposes of the information obligation referred to in Article 13 of the Regulation, to provide the data subjects with all the information therein provided;

e) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders the adoption of appropriate

technical and organizational measures to facilitate the exercise of the rights provided for by the data protection legislation and to satisfy, without unjustified delay, the related requests, including the right to object that may be raised "at any time" by the data subject;

f) pursuant to Article 157 of the Code, orders MA Immobiliare to communicate to the Authority, within thirty days from the notification of this measure, the initiatives undertaken to implement the imposed measure; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

****ORDERS****

pursuant to Article 58, paragraph 2, letter i), of the Regulation, MA Immobiliare S.r.l.s., represented by its legal representative, to pay the sum of €40,000.00 (forty thousand euros) as an administrative pecuniary sanction for the violations indicated in the motivation; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction.

****ORDERS****

the aforementioned Company, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €40,000.00 (forty thousand euros), according to the methods indicated in the annex, within 30 days from the notification of this measure, under penalty of the adoption of subsequent executive acts pursuant to Article 27 of Law No. 689/1981;

****DISPOSES****

a) pursuant to Articles 154-bis of the Code and 37 of Regulation No. 1/2019, the publication of this measure as well as, pursuant to Article 166, paragraph 7, of the Code, the publication of this injunction order on the website of the Guarantor;

b) pursuant to Article 17 of the Guarantor's Regulation No. 1/2019, orders the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this measure may be submitted to the ordinary judicial authority, with an application filed at the ordinary court of the place where the data controller resides, or, alternatively, at the court of the place of residence of the data subject, within thirty days from the date of communication of the measure itself, or sixty days if the applicant resides abroad.

Rome, April 29, 2025

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Ghiglia

****THE ACTING SECRETARY GENERAL****

Filippi